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Case Number: 23STCV30347 Hearing Date: June 24, 2026 Dept: 729

Superior Court of California

County of Los Angeles

DEPARTMENT 729

TENTATIVE RULING

EDUCATION

MEDIA LLC, et al.,

vs.

LOS ANGELES

UNIFIED SCHOOL DISTRICT.

Case No.:

25STCV35625

Hearing Date: June 24, 2026

Defendants Los

Angeles Unified School District's; Dr. Donna Lewis', in her official capacity as a Career Technical Education Linked Learning Specialist in the District's Division of Instruction; Esther Dabagyan's, in her official capacity as the Director of Career Technical Education at the District; Seema Puri's, in her official capacity as the CTE Coordinator at the District; and Matthew Friedman's, in his official capacity as Chief Procurement Officer at the District, demurrer

to pro per Plaintiff Robyn Charles as an Assignee of Education Media LLC's Second Amended Complaint is sustained with 20 days leave to amend to retain counsel.

Defendants Los

Angeles Unified School District's; Dr. Donna Lewis', in her official capacity as a Career Technical Education Linked Learning Specialist in the District's Division of Instruction; Esther Dabagyan's, in her official capacity as the Director of Career Technical Education at the District; Seema Puri's, in her official capacity as the CTE Coordinator at the District; and Matthew Friedman's, in his official capacity as Chief Procurement Officer at the District, motion to strike portions of Plaintiff Robyn Charles as an Assignee of Education Media LLC's Second Amended Complaint is denied as moot.

Defendants Los Angeles Unified School District ("LAUSD"); Dr. Donna Lewis, in her official capacity as a Career Technical Education Linked Learning Specialist in LAUSD's Division of Instruction ("Lewis"); Esther Dabagyan, in her official capacity as the Director of Career Technical Education at LAUSD ("Dabagyan"); Seema Puri's, in her official capacity as the CTE Coordinator at LAUSD ("Puri"); and Matthew Friedman's, in his official capacity as Chief Procurement Officer at LAUSD ("Friedman") (collectively, "Defendants") demur to pro per Plaintiff Robyn Charles as an Assignee of Education Media LLC's ("Charles") ("Plaintiff") Second Amended Complaint ("SAC"). (Notice of Demurrer, pgs. 2-3; C.C.P. §§430.10(b), (d), (e), (f).)

Defendants also move to strike portions of Plaintiff's SAC. (Notice of MTS, pgs. 2-4; C.C.P. §§435, 436.)

1.

Demurrer

Evidentiary

Objections

Defendants' 6/16/26 evidentiary objections to the Declaration of Robyn Charles ("Charles") (filed on May 14, 2026) are sustained as to Nos. 2, 3, 4, 5, and 6, and overruled as to Nos. 1 and 7.

Defendants' 6/16/26 evidentiary objections to the Supplemental Declaration of Charles (filed on June 11, 2026) are sustained as to Nos. 2, 3, 4, 5, 6, 7, 8, 9, 10, 11, 12, 13, 14, 15, 16, 17, 18, 19, and 20, and overruled

as to No. 1.

Request for Judicial Notice

Defendants' 5/11/26 request for judicial notice of (1) the instant docket; (2) the Order denying Plaintiff's Ex Parte Application for Temporary Restraining Order, issued by the Court on December 10, 2025; (3) Plaintiff's first amended complaint; (4) The Clerk's Notice of Voiding of Filing, entered on January 2, 2026; (5) The Minute Order granting Plaintiff's Ex Parte Application for Order Granting Limited Discovery Pursuant to CCP 425.16(g) and leave to amend, issued by the Court on March 20, 2026; (6) Plaintiff's second amended complaint; and (7) Plaintiff's Government Tort Claim submitted to the District on September 16, 2025, is denied because this Court does not need to take judicial notice of filings on the instant docket.

Plaintiff's 5/14/26 request for judicial notice of (1) the Minute Order entered by this Court on March 20, 2026; and (2) an excerpt of the Register of Actions for Case No. 25STCV35625, reflecting all docket entries through May 14, 2026, is denied because this Court does not need to take judicial notice of filings on the instant docket.

Meet and Confer

Before filing a demurrer, the demurring party must meet and confer in person, by telephone, or by video conference with the party who filed the pleading to attempt to reach an agreement that would resolve the objections to the pleading and obviate the need for filing the demurrer. (C.C.P. §430.41(a), emphasis added.)

The demurring party shall file and serve with the demurrer a declaration stating either of the following: (A) The means by which the demurring party met and conferred with the party who filed the pleading subject to demurrer, and that the parties did not reach an agreement resolving the objections raised in the demurrer. (B) That the party who filed the pleading subject to demurrer failed to respond to the meet and confer request of the demurring party or otherwise failed to meet and confer in good faith. (C.C.P. §430.41(a)(3), emphasis added.)

Defendants' counsel declares that she met and conferred with Plaintiff by video conference on April 28, 2026, and the parties were unable to reach an agreement.

(Decl. of Simmons ¶¶5-6.)

Defendants' counsel's declaration is sufficient under C.C.P. §430.41(a).

Therefore, the Court will consider Defendants' demurrer.

Procedural

Background

Plaintiff

filed her initial Complaint on December 4, 2025, against Defendant LAUSD. Plaintiff filed her first amended complaint ("FAC") against Defendant on December 12, 2025.

On January 2, 2026, the Clerk filed a notice that the initial Complaint from Education Media LLC was voided for failure to make a payment of court fees or to request a hearing about a court fee waiver order. (1/2/26 Clerk's Notice.)

Plaintiff filed the operative SAC on March 23, 2026, alleging eleven causes of action against Defendants: (1) inverse condemnation; (2) breach of implied-in-fact contract; (3) promissory estoppel; (4) quantum meruit; (5) unjust enrichment; (6) misappropriation of trade secrets; (7) breach of written settlement agreement; (8) intentional interference with prospective economic advantage; (9) breach of mandatory duty; (10) retaliation and race discrimination in violation of FEHA; and (11) False Claims Act Retaliation.

Defendants filed their demurrer and accompanying motion to strike on May 11, 2026. Plaintiff filed her combined opposition on May 14, 2026. Defendants filed their replies on June 16, 2026.

Summary of Demurrer

Defendants demur to the entire SAC on the basis that the pleading as a whole is subject to demurrer based on a lack of legal capacity to sue. (Demurrer, pg. 3; C.C.P. §430.10(b).) Defendants demur to the entire SAC on the basis that the pleading as a whole is subject to demurrer based on a defect or misjoinder of parties, resulting in the lack of standing. (Demurrer, pg. 3; C.C.P. §430.10(d).) Defendants demur to the entire SAC on the basis that the pleading as a whole is subject to demurrer based on failure to state a claim. (Demurrer, pg. 3; C.C.P. §430.10(e).) Defendants demur to the entire SAC on the basis that the pleading as a whole is subject to demurrer based on uncertainty.

(Demurrer, pg. 3; C.C.P.

§430.10(f).) Defendants demur to the entire

SAC on the basis that the pleading as a whole is subject to demurrer based on failure to comply with the Government Claims Act's presentation requirements. (Demurrer, pg. 3; Gov. Code §§911.2, 945.4, 950.2.)

Finally, Defendants demurrer on the basis that all claims are barred by sovereign immunity. (Demurrer, pg. 3.)

Legal Standard

"[A] demurrer tests the legal sufficiency of the allegations in a complaint." (Lewis v. Safeway, Inc. (2015) 235 Cal.App.4th 385, 388.) A demurrer can be used only to challenge defects that appear on the face of the pleading under attack or from matters outside the pleading that are judicially noticeable. (See Donabedian v. Mercury Insurance Co. (2004) 116 Cal.App.4th 968, 994 [in ruling on a demurrer, a court may not consider declarations, matters not subject to judicial notice, or documents not accepted for the truth of their contents].) For purposes of ruling on a demurrer, all facts pleaded in a complaint are assumed to be true, but the reviewing court does not assume the truth of conclusions of law. (Aubry v. Tri-City Hospital District (1992) 2 Cal.4th 962, 967.)

Lack of Legal Capacity to Sue

A corporation's capacity to maintain a legal action and to be sued derives from the rule that a corporation has all of the powers of a natural person in carrying out its business. (Corp. Code §§18, 207; C.C.P. §17 [stating "person" includes corporation].)

One power that a natural person enjoys but that a corporation does not is the right of self-representation in court. With the sole exception of small claims court, a corporation cannot act in propria persona in state courts but must act through licensed attorneys. (Merco Constr. Engineers, Inc. v. Municipal Court (1978) 21 Cal. 3d 724; Thomas G. Ferruzzo, Inc. v. Superior Court (1980) 104 Cal.App.3d 501; Gutierrez v. G & M Oil Co., Inc. (2010) 184 Cal. App. 4th 551.)

A cause of action is assignable by its owner if it arises out of a legal obligation or a violation of a

property right. (Civ. Code §954.) With the exception of causes of action of a personal nature, such as injuries arising out of tort, a cause of action is assignable. (*Arabia v. BAC Home Loans Servicing, L.P.* (2012) 208 Cal.App.4th 462, 472, emphasis added, citing *Goodley v. Wank & Wank, Inc.* (1976) 62 Cal.App.3d 389, 393-394; see *Baum v. Duckor, Spradling & Metzger* (1999) 72 Cal.App.4th 54, 64-65 [tracing general rule conferring assignability of causes of action, which arise out of an obligation, breach of contract, violation of a right of property, or damage to personal or real property].)

Plaintiff's claims, with the exception of the cause of action for FEHA discrimination, are legal obligations and property rights of the LLC, and therefore can be assigned. (See Civil Code §954.)

California case law is silent as to Plaintiff's attempt to circumvent the requirement that a business entity be represented by counsel and cannot bring an action in pro per. The Supreme Court of Nebraska, however, has opined on a similar circumstance in *Zapata v. McHugh* (2017) 296 Neb. 216. The Zapata Court determined that "[a]n assignee stands in the shoes of the assignor and accepts it subject to all available defenses. The assignment transfers to an assignee only the rights of the assignor. When an assignee brings suit in his or her own name, the assignee is still bound by the business entity's limitation that any legal action arising out of its interests must be represented by counsel." (*Zapata v. McHugh* (2017) 296 Neb. 216, 226; accord *Sagorin v. Sunrise Heating and Cooling, LLC* (Mont. 2022) 408 Mont. 119, 126; *Roberts v. Alaska* (Alaska 2007) 162 P.3d 1214, 1220-1221; *Shamey v. Hickey* (D.C. 1981) 433 A.2d 1111, 1112-1113; *Palazzo v. Gulf Oil Corp.* (11th Cir. 1985) 764 F.2d 1381, 1385-1386; *Jones v. Niagara Frontier Transp. Auth.* (2d Cir. 1983) 722 F.2d 20, 23; *Bischoff v. Waldorf* (E.D. Mich. 2009) 660 F.Supp.2d 815, 820-821 [stating corporation was required to litigate claims through a licensed attorney even if assignment was valid]; *Mercu-Ray Indust., Inc. v. Bristol-Myers Co.* (S.D.N.Y. 1974) 392 F.Supp. 16, 17-20.)

The Zapata Court relied on the "important policy reasons supporting the rule that corporations and other related legal entities must be represented by an attorney should not be easily circumvented. To permit a distinct business entity to maintain litigation through the device of an assignment would destroy the salutary principle that a corporation cannot act in legal matters or maintain litigation without the benefit of an attorney." (*Zapata*, 296 Neb. at pgs. 225-226.)

Accordingly, Defendants'

demurrer to Plaintiff's SAC on the lack of legal capacity to sue is sustained with 20 days leave to amend to retain counsel.

Conclusion

Defendants' demurrer to the SAC sustained with 20 days leave to amend to retain counsel.

Moving Party to give notice.

2.

Motion to Strike

In light of the Court's ruling on the demurrer, Defendants' motion to strike is denied as moot.

Conclusion

Defendants' motion to strike is denied as moot.

Moving Party to give notice.

Dated: June _____, 2026

Hon. Daniel M. Crowley

Judge of the Superior Court